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Case Number: 21STCV44960 Hearing Date: August 3, 2026 Dept: 224

Logan v. King et al.,

TENTATIVE RULING

The Motion to Seal is GRANTED.

The Motion for Summary Judgment is DENIED.

The Motion for Summary Adjudication is GRANTED as to the seventh and eighth causes of action, and DENIED as to the first, second, third, fourth, fifth, sixth, ninth, tenth, and eleventh causes of action and as to Plaintiff's request for punitive damages.

ANALYSIS

Introduction

On December 9, 2021, Plaintiff Elisabeth Logan filed the operative Complaint in this action.

On December 29, 2025, Defendants Zachary King and King Studio, LLC filed a Motion for Summary Judgment, or in the Alternative, Summary Adjudication of Plaintiff's Complaint.

On December 30, 2025, Defendants filed a Motion to Seal Documents Attached to the Declaration of Nannina Angioni.

On March 13, 2026, Plaintiff filed her Opposition.

On March 20, 2026, Defendants filed a Reply.

Motion to Seal

Defendants move under California Rules of Court, rules 2.550 and 2.551 for an order sealing Exhibits D, E, G, I, J, K, L, M, O, P, and Q to the Declaration of Nannina L. Angioni filed in support of the summary judgment motion.

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, Rule 2.550(c).) However, a party may move to seal records pursuant to California Rules of Court, rules 2.550-2.551. “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1).) The parties requesting a record be sealed must lodge it with the court. (Cal. Rules of Court, rule 2.551(b)(4).) “The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, Rule 2.551(a).)

To grant an order pursuant to California Rules of Court, rules 2.550 and 2.551, the Court must expressly find facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

Having reviewed the Exhibits, the Court finds that each falls within one or more of the following three categories, and that an overriding interest exists as to each.

Exhibits I, J, K, M, and Q consist of invoice amounts paid to Plaintiff (Exh. I), Plaintiff's annual pay by year (Exh. J), payment statements and pay issued to Plaintiff in 2020 (Exh. K), email communications and attached invoices regarding 2020 invoicing and payments (Exh. M), and excerpts of Plaintiff's wage statements (Exh. Q). Exhibit D is King Studio's 2017 annual performance review of Plaintiff — a personnel record in which Plaintiff retains a recognized privacy interest. Exhibits E, L, and P are internal and inter-party communications reflecting King Studio's operational decision-making, brand and agency relationships, and its positions in negotiating Plaintiff's engagement terms.

The privacy interests of non-party employees and contractors in their own compensation and personnel information are substantial and are entitled to protection independent of any interest asserted by Defendants. (Board of Trustees v. Superior Court (1981) 119 Cal.App.3d 516, 526 [privacy interest in confidential personnel files]; El Dorado Savings & Loan Assn. v. Superior Court (1987) 190 Cal.App.3d 342, 345 [privacy interest of a nonparty employee in his personnel file].) The Court finds an overriding privacy interest as to this category, and that the interest supports sealing.

Exhibit G is the 2019 Independent Contractor Agreement between King Studio and Logan Media Group, LLC. Exhibit O comprises Plaintiff's proposed terms and conditions under which she sought to provide services to King Studio for 2020. Both documents set out King Studio's commission structures, percentage rates for brand-deal, usage-renewal, talent-fee, speaking, and budget-packaging work, the allocation of crew and production costs, and the studio's pre-negotiated rate practices. Disclosure would place King Studio at a competitive disadvantage in future negotiations with brands, agencies, and talent, and whose confidentiality is expressly protected by the agreements themselves. The Court finds an overriding commercial-confidentiality interest as to this category, and that the interest supports sealing.

There is a substantial probability that the interests will be prejudiced if the Exhibits are not sealed. The material is not otherwise available to the public, each page bears a confidentiality legend, Defendants have not previously placed the material in the public record, and Plaintiff has herself lodged the identical 2019 Independent Contractor Agreement and 2017 annual review conditionally under seal in connection with her opposition. The proposed sealing is narrowly tailored, extending only to some of the exhibits to the Angioni Declaration and leaving the memorandum of points and authorities, the separate statement, the deposition excerpts, and the balance of the evidentiary record in the public file. Finally, no less restrictive means exist to achieve the overriding interests. Redaction would not serve here because the protected content is not confined to discrete passages. The compensation figures and pay comparisons are coextensive with the invoices, payment statements, and wage statements themselves; the commission percentages and deal terms constitute virtually the entirety of Exhibits G and O; Exhibit D is confidential in its entirety; and the business-strategy content of Exhibits E, L, and P is interwoven throughout rather than confined to discrete passages.

Accordingly, the motion is GRANTED. Exhibits D, E, G, I, J, K, L, M, O, P, and Q to the Declaration of Nannina L. Angioni are ordered sealed.

MOTION FOR SUMMARY JUDGMENT

Defendants Zachary King and King Studio, LLC move for summary judgment, or in the alternative summary adjudication, as to each of Plaintiff's first through eleventh causes of action, and Plaintiff's request for punitive damages.

As a threshold matter, the Court notes that the Motion frames twelve issues addressing the first through eleventh causes of action and punitive damages. The Complaint pleads a twelfth cause of action for PAGA penalties. The Motion does not address this cause of action.

Summary judgment is therefore DENIED, and the Court proceeds issue by issue below.

Evidentiary Objections

Defendants submit evidentiary objections to the Declarations of Morgan Malinics, Elisabeth Logan, Shelby Jacobsen Robinson, and Vina Nguyen, submitted in support of Plaintiff's Opposition to the Motion for Summary Judgment.

The objections are OVERRULED.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843). In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). Thus, summary judgment or summary adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741).

As to each claim as framed by the complaint, the party moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to negate an essential element. (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520). Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389). A motion for summary judgment or summary adjudication must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition or where the opposition is weak. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 468-469; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384, 387.).

Once the moving party has met the burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material facts exists as to a cause of action or a defense thereto. (CCP § 437c(p)(2)). When a party cannot establish an essential element or defense, a court must grant a motion for summary adjudication. (CCP § 437c(p)(1)-(2)).

First Cause of Action: Harassment (Issue No. 1)

The elements of a harassment claim under FEHA are: (1) plaintiff belongs to a protected group; (2) plaintiff was subject to harassment; (3) the harassment complained of was based on plaintiff's membership in the protected group; (4) the harassment was sufficiently severe or pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior. (*Jones v. Department of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377; *Lewis v. City of Benicia* (2014) 224 Cal.App.4th 1519, 1524; CACI No. 2521A.)

Defendants move for summary adjudication of the first cause of action on the grounds that that the claim is time-barred because all allegedly harassing conduct predates the three-year limitations period; and, that Plaintiff cannot prove a hostile work environment because the conduct was neither severe nor pervasive.

Timeliness

A verified complaint with the Civil Rights Department must be filed within three years of the alleged unlawful practice. (Gov. Code § 12960(e)(5).)

In support, Defendants provide evidence that Plaintiff filed her administrative complaint on or about May 20, 2021. (Angioni Decl., Exh. A [Complaint, Exh. A].) The limitations period therefore reaches back to May 20, 2018. Defendants further provide evidence that the conduct Plaintiff attributes to Mr. Gauthier decreased in April 2016 when she obtained a private office and "ceased entirely" in early 2018. (Angioni Decl., Exh. R [Logan Depo. 155:19-156:2, 159:18-160:25]; Exh. S [King Depo. 171:20-22].) Defendants also provide evidence that Mr. King's clothing changes before September 2016 and that the alleged boxer shorts incident occurred in 2017. (Angioni Decl., Exh. R [Logan Depo. 245:16-246:15, 247:4-25].)

Defendant contends that their evidence shows that Mr. Gauthier's conduct "ceased entirely" in 2018, however, the Logan Deposition provides only that the conduct "was better" because Mr. Gauthier "was no longer in the office every day" in mid-2018. (Angioni Decl., Exh. R [Logan Depo. 155:19-156:2, 159:18-160:25].) Defendants' argument that "Mr. Gauthier stopped all [harassing] conduct" by March 2018 is not supported by the proffered evidence. Testimony that conduct "was better" because a coworker was in the office less often is not testimony that the conduct ended, and it does not establish that it ended before May 20, 2018. Accordingly, the Court is not inclined to find that Defendants have met their burden as to Mr. Gauthier's conduct.

As to Mr. King's conduct, the Court finds that Defendants have met their initial burden. Both incidents predate May 20, 2018 on the face of the evidence Defendants cite.

Summary adjudication may be granted only if it completely disposes of a cause of action. (Code Civ. Proc. § 437c(f)(1).) Because Defendants' timeliness showing does not reach the conduct attributed to Mr. Gauthier, that ground cannot dispose of the first cause of action irrespective of how the continuing violation question is resolved as to Mr. King's two incidents.

Defendants have not met their burden and the Motion cannot be granted on that ground.

Severe or Pervasive

In support, Defendants provide evidence that Mr. Gauthier at most occasionally poked or tickled Plaintiff, once invited her to a premiere which she declined without incident before accepting his tickets and attending with her boyfriend, and made generalized comments that were not sexual and not directed exclusively at her. (Angioni Decl., Exh. R [Logan Depo. 155:19-156:2, 159:18-160:25, 162:15-23, 162:24-164:13].) Defendants provide evidence that Mr. King's clothing changes occurred on a full set in front of the crew, that he was never fully naked, and that Plaintiff did not view the conduct as harassment. (Angioni Decl., Exh. R [Logan Depo. 245:16-246:15, 247:4-10].) Defendants further provide evidence that Plaintiff never reported harassment and instead praised the workplace. (Angioni Decl., Exh. R [Logan Depo. 35:7-14, 38:3-19, 137:22-140:4, 150:2-153:21]; Exh. C [email of Aug. 19, 2016]; Exh. E [emails expressing appreciation].)

Defendants have met their initial burden. Defendants provide Plaintiff's own testimony characterizing the physical contact as intermittent poking and tickling that decreased over time, the clothing changes as occurring openly on set and not perceived by her as harassment, and the underwear incident as a single occurrence. The burden shifts to Plaintiff.

In opposition, Plaintiff provides her testimony that Mr. Gauthier poked and tickled her at least weekly for years, commented regularly on her appearance, asked whether she had an eating disorder, scrolled through dating profiles and commented on women's bodies in her office, and pressured her to end her relationship so they could become a producing "power couple." (Garcia Decl., Exh. 1 [Logan Depo. 141:8-18, 144:6-147:9]; Exh. 10 [Logan Decl. ¶ 3].) She provides testimony that Mr. King changed clothes in front of her four or five times in a manner that made her uncomfortable and left his underwear in her office. (Garcia Decl., Exh. 1 [Logan Depo. 245:16-246:3, 247:11-15].) She provides declarations from two former employees stating that Mr. Gauthier directed unwanted attention at another woman, that he was "creepy," and that he told Plaintiff to "go clean." (Garcia Decl., Exh. 11 [Robinson Decl. ¶¶ 9-10]; Exh. 12 [Nguyen Decl. ¶ 16].) She provides evidence that King Studio did not implement anti-harassment training until 2021 or 2022. (Garcia Decl., Exh. 2 [Riggs Depo. 99:23-100:2, 102:4-11].)

Defendants reply that this testimony contradicts other portions of the same deposition. Both sides cite the same transcript. That is a conflict in the evidence and a question of weight and credibility, which the Court may not resolve on summary judgment.

The Legislature has directed that a single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if it unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment. (Gov. Code § 12923(b).) A discriminatory remark may be relevant circumstantial evidence even if not made in the context of an employment decision. (Gov. Code § 12923(c); Reid v. Google, Inc. (2010) 50 Cal.4th 512, 539-541.) The Legislature has further declared that harassment cases are rarely appropriate for disposition on summary judgment. (Gov. Code § 12923(e).)

Plaintiff has met her burden. Plaintiff provides evidence that the conduct was constant and pervasive over a period of years, included comments on her body and questions about whether she had an eating disorder, and was corroborated by other women who describe similar treatment – evidence from which a jury could find the totality of the circumstances altered the conditions of her work.

The Motion for Summary Adjudication is DENIED as to the first cause of action.

Second Cause of Action: Gender Discrimination (Issue No. 2)

To establish a prima facie case, Plaintiff must show she was a member of a protected class, was performing competently, suffered an adverse employment action, and that some other circumstance suggests discriminatory motive. (Guz v. Bechtel National, Inc. (2000) 24 Cal.4th 317, 355.)

Defendants move for summary adjudication of the second cause of action on the grounds that Plaintiff suffered no adverse employment action and that she has no evidence of a discriminatory motive.

Adverse Employment Action

In support, Defendants provide evidence that Plaintiff was not terminated, that her company REPT held a one-year contract that expired by its terms on December 31, 2019, and that the parties simply failed to agree on new terms after Plaintiff demanded either exclusivity or a 20% commission. (Angioni Decl., Exh. G [2019 Independent Contractor Agreement]; Exh. H [2019 Freelance Rates]; Exh. O [Plaintiff's proposed 2020 terms]; Exh. P [King correspondence re 2020 terms].) Defendants provide evidence that Plaintiff's compensation increased year after year. (Angioni Decl., Exh. T [Riggs Depo. 46:8-47:1, 48:7-49:1, 62:13-63:9]; Exh. J [payroll records].) They provide evidence that the 2017 travel decisions were driven by brands

supplying a single hotel room, that King Studio changed the policy once Plaintiff raised the issue, that she attended meetings when her role required it, and that duties shifted to employees after she became a contractor. (Angioni Decl., Exh. R [Logan Depo. 42:11-45:8]; Exh. S [King Depo. 41:2-42:22; 34:9-35:4, 94:14-96:25; 24:22-26:11, 204:6-206:3, 228:14-229:16]; Exh. T [Riggs Depo. 90:21-91:18, 94:4-15; 126:5-8].)

Before turning to Plaintiff's showing, the Court addresses Defendants' legal premise. Defendants rely on *Tollefson v. Roman Catholic Bishop* (1990) 219 Cal.App.3d 843, 854, and Labor Code section 2920, subdivision (a), for the proposition that a nonrenewal cannot be an adverse action. Those authorities govern the common-law tort of wrongful discharge in violation of public policy, addressed in connection with the sixth cause of action below, and not a statutory claim under FEHA. *Tollefson* is a contract and tort case; it holds that a decision not to enter into a new contract or renew an expired one will not support a claim for wrongful discharge, because the relationship ends by operation of the parties' own agreement rather than by an act of the employer. Neither *Tollefson* nor *Daly v. Exxon Corp.* (1997) 55 Cal.App.4th 39 places a discriminatory or retaliatory nonrenewal beyond the reach of a statutory claim. Addressing a retaliation claim under Labor Code section 6310, subdivision (b), *Daly* drew precisely this distinction, affirming dismissal of the common-law count while recognizing that "[w]here an employer discriminates against the employee and retaliates by not renewing the employment contract, the employee may sue for statutory damages." (Id. at pp. 45-46.) The same reasoning applies to a statutory claim under FEHA, which reaches not only ultimate employment actions but "the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1053-1054.) Alleged adverse acts are considered collectively, not in isolation. (Id. at pp. 1055-1056.)

Defendants have met their initial burden. The burden shifts to Plaintiff.

In opposition, Plaintiff provides evidence that after her April 2018 pay complaint King Studio presented her with an ultimatum: accept a demotion losing her Head of Production and Producer titles and handling only sales and bookings, or transition to independent contractor status. (Garcia Decl., Exh. 10 [Logan Decl. ¶ 12].) She provides the December 14, 2018 email stating that "Ron from HR" required a resignation letter and an LLC, and that "this needs to be a priority for us to continue working together." (Garcia Decl., Exh. 9.) She provides evidence that she opposed submitting a resignation letter and had no intention of resigning. (Garcia Decl., Exh. 10 [Logan Decl. ¶¶ 14-15].) She provides testimony that she was excluded from creative meetings and from film and television opportunities she had been promised, and from business travel. (Garcia Decl., Exh. 10 [Logan Decl. ¶¶ 9-10]; Exh. 1 [Logan Depo. 169:5-13, 171:8-172:19].) She provides testimony that Mr. King ended the relationship by video call on May 14, 2020. (Garcia Decl., Exh. 10 [Logan Decl. ¶ 19].)

Plaintiff has met her burden on this element.

Discriminatory Motive

In support, Defendants provide evidence that Plaintiff never reported that she was harassed or discriminated against because of her gender, that she praised Mr. King's leadership and thanked Mr. Riggs for fostering a supportive workplace, and that the two concerns she did raise were met with immediate action. (Angioni Decl., Exh. R [Logan Depo. 35:7-14, 38:3-19, 137:22-140:4, 150:2-153:21, 153:22-154:18]; Exh. C; Exh. E.)

Defendants have met their initial burden. The burden shifts to Plaintiff.

In opposition, Plaintiff provides testimony that after interviewing a female candidate for a VFX supervisor position, Mr. King told her he did not want a woman overseeing an all-male post team because he did not want to reduce the men's morale, and that he wanted a man for the role. (Garcia Decl., Exh. 1 [Logan Depo. 172:10-173:20].) She provides evidence that King Studio hired Luke Snedecor, a male. (Garcia Decl., Exh. 1 [Logan Depo. 174:14-18].) She provides Mr. Riggs's testimony that the rationale for King Studio's travel practice was to protect Mr. King's image by avoiding situations that could be perceived as romantic involvement with someone other than his wife. (Garcia Decl., Exh. 2 [Riggs Depo. 95:15-20].) She provides Mr. King's testimony that he and Mr. Sommerville "totally agreed" that Ms. Malinics had been subjected to gender discrimination. (Garcia Decl., Exh. 3 [King Depo. 41:21-42:19].) She provides declarations from three former employees corroborating unequal treatment of women. (Garcia Decl., Exh. 11 [Robinson Decl. ¶¶ 7-12]; Exh. 12 [Nguyen Decl. ¶¶

18-21]; Exh. 13 [Malinics Decl. ¶¶ 10-18].)

The plaintiff's prima facie burden on this element is not onerous; she need only offer evidence supporting a rational inference that gender was a substantial motivating factor. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355; *Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 310.)

Plaintiff has met her burden on this element.

Legitimate Business Reason and Pretext

Defendants further provide evidence of a legitimate, nondiscriminatory reason. They provide evidence that they were reassessing relationships with outside agencies due to operational inefficiencies and inconsistent messaging, that the decision to bring brand deals in-house applied to all agencies, and that Plaintiff's proposed 20% commission was not financially viable. (*Angioni Decl.*, Exh. P [King correspondence re 2020 terms]; Exh. O.)

Defendants have met that burden. The burden shifts back to Plaintiff to produce substantial responsive evidence of pretext.

In opposition, Plaintiff provides Mr. Riggs's testimony that King Studio hired a male, Noah Pacifici, to work with brands. (*Garcia Decl.*, Exh. 2 [Riggs Depo. 15:3-13].) She provides his testimony that King Studio continued using third-party agencies, including Creative Artists Agency, Captiv8, Influential, and Spacestation. (*Garcia Decl.*, Exh. 2 [Riggs Depo. 15:15-16:3].) She provides his testimony that King Studio continued to use Mr. Gauthier for producing work as recently as 2022. (*Garcia Decl.*, Exh. 2 [Riggs Depo. 16:10-13].) This evidence comes from Defendants' own officer and directly contradicts the stated reason. Inconsistencies and implausibilities in an employer's proffered reasons may support an inference of pretext. (*Hersant v. Department of Social Services* (1997) 57 Cal.App.4th 997, 1005.)

Plaintiff has met her burden.

The Motion for Summary Adjudication is DENIED as to the second cause of action.

Third Cause of Action: Wage Discrimination (Issue No. 3)

An employer shall not pay an employee at wage rates less than the rates paid to employees of another sex for substantially similar work, when viewed as a composite of skill, effort, and responsibility, and performed under similar working conditions. (Lab. Code § 1197.5(a).) If a differential is shown, the employer must demonstrate that it is based on a listed factor, that the factor is applied reasonably, and that the factors account for the entire wage differential. (Lab. Code § 1197.5(a)(1)-(3).)

Defendants move for summary adjudication of the third cause of action on the ground that Plaintiff cannot establish a prima facie case because she was paid more than any similarly situated male.

In support, Defendants provide evidence that Mr. Gauthier was the only male producer, that both received a base salary plus a 2% commission in 2016 rising to 2.5% in 2017, and that Plaintiff earned \$119,369.69 in 2017 and \$256,874.50 in 2018 while Mr. Gauthier earned \$84,697.87 and \$66,805.37. (*Angioni Decl.*, Exh. S [King Depo. 58:25-61:10]; Exh. T [Riggs Depo. 46:8-47:1]; Exh. J [payroll comparison].) Defendants provide evidence that Plaintiff was the second highest paid person at the company. (*Angioni Decl.*, Exh. J.) They provide evidence that Sommerville and Gerlicher were retained as independent contractor writers and sound producers who developed story concepts, character arcs, trick designs, and sound design, and who received commission without any base salary. (*Angioni Decl.*, Exh. S [King Depo. 26:5-32:24, 28:22-30:9, 35:17-36:21, 53:4-54:5].)

Defendants rely on *Hall v. County of Los Angeles* (2007) 148 Cal.App.4th 318, 323-325. *Hall* was decided under the former version of section 1197.5, which required "equal work" in the same establishment. The Legislature replaced that standard effective January 1, 2016. The comparison now turns on actual job content rather than job title.

Defendants have met their initial burden. Defendants provide payroll evidence that Plaintiff out-earned Mr. Gauthier in each relevant year and was the second-highest paid person at the company, and evidence that Sommerville and Gerlicher held different roles with different duties and received no salary. The burden shifts to Plaintiff.

In opposition, Plaintiff provides testimony that Mr. Sommerville and Gerlicher received a 5% commission on brand deals while she received 2%, then 2.5%, then 3%. (Garcia Decl., Exh. 1 [Logan Depo. 48:2-49:1].) Defendants' own evidence confirms the 5% rate. (Angioni Decl., Exh. S [King Depo. 28:22-30:9].) She provides evidence that all three worked on the same brand deal projects and were compensated by project-based commission. (Garcia Decl., Exh. 1 [Logan Depo. 48:2-49:1].) She provides a declaration from Ms. Malinics stating she experienced gender-based pay disparity at King Studio. (Garcia Decl., Exh. 13 [Malinics Decl. ¶¶ 17-19].)

Plaintiff also argues that Mr. Riggs's testimony provides that, asked whether Mr. Sommerville's role was more valuable than hers, he answered, "I don't think it necessarily was more valuable, in terms of pay, at the end of the day." (Garcia Decl., Exh. 2 [Riggs Depo. 59:13-19].) However, the Court could not locate this evidence in the record. Page 59 of the Riggs Deposition has not been provided in Plaintiff's evidence.

Defendants reply that the statute requires comparison of total compensation rather than isolated commission rates. The statute speaks of "wage rates." Whether individuals who worked on the same branded content projects performed substantially similar work when viewed as a composite of skill, effort, and responsibility is a question of fact. Comparators need not be identical, only similar in all relevant respects. (*Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 689-690; *Gupta v. Trustees of California State University* (2019) 40 Cal.App.5th 510, 520.) The statutory defenses under section 1197.5(a)(1)-(3) are not briefed.

Plaintiff has met her burden. Plaintiff provides evidence that she and the identified comparators worked the same brand deal projects for project-based commissions at materially different rates.

The Motion for Summary Adjudication is DENIED as to the third cause of action.

Fourth Cause of Action: Retaliation (Issue No. 4)

Plaintiff must show she engaged in protected activity, was subjected to an adverse employment action, and that a causal link exists between the two. (*Yanowitz, supra*, 36 Cal.4th at p. 1042.) The burden then shifts to Defendants to articulate a legitimate, nonretaliatory reason, and back to Plaintiff to show pretext. (*Morgan v. Regents of Univ. of Cal.* (2000) 88 Cal.App.4th 52, 68; *Loggins v. Kaiser Permanente Internat.* (2007) 151 Cal.App.4th 1102, 1109.)

Defendants move for summary adjudication of the fourth cause of action on the grounds that Plaintiff suffered no adverse employment action and that King Studio had a legitimate, non-retaliatory reason for declining her proposed terms.

In support, Defendants provide the same evidence offered as to the second cause of action. (Angioni Decl., Exh. G; Exh. H; Exh. O; Exh. P; Exh. J; Exh. T [Riggs Depo. 46:8-47:1, 48:7-49:1, 62:13-63:9].)

Defendants have met their initial burden. Defendants provide evidence that Plaintiff's compensation and title increased after each complaint, that the 2019 contract expired according to its written terms, and that King Studio declined to renew for

stated business reasons unrelated to any protected activity. The burden shifts to Plaintiff.

In opposition, Plaintiff provides testimony that she told Mr. Riggs in April 2018 that she felt treated differently because she was a woman and that her male colleagues were paid more for comparable work. (Garcia Decl., Exh. 1 [Logan Depo. 38:20-40:7, 56:22-57:4]; Exh. 10 [Logan Decl. ¶ 11].) She provides testimony that she raised pay disparity concerns to Mr. Riggs on at least three occasions. (Garcia Decl., Exh. 1 [Logan Depo. 56:11-57:4].) An employee need not use legal terminology to engage in protected activity; opposing conduct the employee reasonably believes to be discriminatory suffices. (Yanowitz, *supra*, 36 Cal.4th at p. 1043.) That Mr. Riggs testified he could not recall Plaintiff raising gender in connection with her pay complaints creates a credibility conflict for the trier of fact, not a basis for adjudication. (Garcia Decl., Exh. 2 [Riggs Depo. 79:19-21].)

Plaintiff provides the same adverse action evidence discussed above. (Garcia Decl., Exh. 9; Exh. 10 [Logan Decl. ¶¶ 9-12, 14-15, 19].) On causation, she provides evidence that the December 14, 2018 email and the January 2019 reclassification followed within months of the April 2018 complaint. (Garcia Decl., Exh. 9; Exh. 10 [Logan Decl. ¶¶ 11-15].) A causal link may be established by evidence that the employer knew of the protected activity and the adverse action followed within a relatively short time. (Wawrzewski, *supra*, 106 Cal.App.5th at p. 702.)

On pretext, she provides the Riggs testimony discussed above. (Garcia Decl., Exh. 2 [Riggs Depo. 15:3-16:13].)

Plaintiff has met her burden. Plaintiff provides evidence that she told Mr. Riggs in April 2018 she was being treated differently because she was a woman, that she raised pay disparity concerns to him on at least three occasions, that she was presented with the reclassification ultimatum within months of the April 2018 complaint, and that Defendants' officer testified to conduct – the retention of outside agencies, the continued engagement of Mr. Gauthier, and the hiring of a male to work with brands – from which a trier of fact could find that the stated reason for ending the relationship was not the actual reason.

The Motion for Summary Adjudication is DENIED as to the fourth cause of action.

Fifth Cause of Action: Failure to Prevent Harassment, Discrimination, and Retaliation (Issue No. 5)

To establish this claim, a plaintiff must show she was subjected to discrimination, harassment, or retaliation, that the employer failed to take all reasonable steps to prevent it, and that the failure caused injury. (Trujillo v. North County Transit Dist. (1998) 63 Cal.App.4th 280, 289.)

Defendants move for summary adjudication of the fifth cause of action on the sole ground that it is derivative and fails with the underlying claims.

In support, Defendants provide no evidence directed at the second or third elements. Their showing rests entirely on the premise that the first, second, and fourth causes of action fail. Because triable issues remain as to each of those claims, that premise is not established.

Defendants have not met their initial burden. The burden does not shift to Plaintiff.

The Motion for Summary Adjudication is DENIED as to the fifth cause of action.

Sixth Cause of Action: Wrongful Termination in Violation of Public Policy (Issue No. 6)

Plaintiff must establish an employer-employee relationship, that the employer terminated her employment, that the termination was substantially motivated by a violation of public policy, and resulting harm. (Yau v. Allen (2014) 229 Cal.App.4th 144, 154; Alamo v. Practice Management Information Corp. (2013) 219 Cal.App.4th 466, 479.)

Defendants move for summary adjudication of the sixth cause of action on three grounds: that Plaintiff was not an employee in 2019 and 2020, that she was never terminated because the contract expired by its terms, and that no protected characteristic motivated the decision.

Employment Relationship

In support, Defendants provide evidence that Plaintiff formed Logan Media Group, LLC and then REPT, that her company rather than Plaintiff personally contracted with King Studio, that she no longer received a salary, and that she set her own schedule, chose her work location in Colorado, selected crew, and was free to work for others. (Angioni Decl., Exh. F [email of Jan. 4, 2019]; Exh. G; Exh. H; Exh. R [Logan Depo. 262:24-263:3].)

That showing carries Defendants' initial burden, and the burden shifts to Plaintiff.

For the reasons set forth in the classification discussion below, a triable issue exists as to whether Plaintiff was King Studio's employee during 2019 and 2020.

The first ground does not dispose of the claim.

Termination

Unlike the FEHA claims addressed above, this common-law tort requires an actual termination of the employment relationship by the employer; a nonrenewal that leaves the plaintiff with a statutory remedy will not support it. Employment for a specified term is terminated by expiration of its appointed term. (Lab. Code § 2920(a).) A decision not to renew a fixed-term contract that expires by its own terms will not support this tort. (Tollefson, supra, 219 Cal.App.3d at p. 854; Daly, supra, 55 Cal.App.4th at pp. 45-46.) This ground therefore depends on establishing that the parties' relationship ended by expiration of the 2019 agreement.

In support, Defendants provide evidence that the 2019 agreement contained a fixed end date of December 31, 2019 and that the parties thereafter failed to reach new terms. (Angioni Decl., Exh. G; Exh. H; Exh. P.)

Defendants have not met their initial burden on this element. Their own evidence establishes that the relationship did not end on December 31, 2019. Defendants provide evidence that the parties negotiated a further arrangement in 2020 under which King Studio would pay REPT 15% on pipeline deals, and that King Studio paid approximately \$270,000 in 2020. (Angioni Decl., Exh. P; Exh. J; Exh. K [2020 payment statements].) The relationship did not end on December 31, 2019. On Defendants' own account the 2020 engagement was a distinct arrangement, and Defendants offer no evidence that it carried a fixed term that expired of its own force.

The burden therefore does not shift as to this element. Even were it otherwise, Plaintiff provides testimony that on February 6, 2020 Mr. King assured her that her position was safe and that she would remain the priority producer on brand deals if the terms stayed the same as 2019, that she emailed him that evening agreeing to proceed on that basis, and that Mr. King ended the relationship on May 14, 2020 after she proposed a modified agreement. (Garcia Decl., Exh. 10 [Logan Decl. ¶¶ 18-19].) Whether the relationship ended by expiration of a fixed term or by an affirmative act of termination in May 2020 is disputed.

The second ground does not dispose of the claim.

Public Policy Motivation

In support, Defendants provide the same legitimate business reason evidence offered as to the second cause of action: that they were reassessing relationships with outside agencies, that the decision to bring brand deals in-house applied to all agencies, and that Plaintiff's proposed 20% commission was not financially viable. (Angioni Decl., Exh. P; Exh. O.) That showing carries Defendants' initial burden, and the burden shifts to Plaintiff.

Plaintiff meets it with the pretext evidence discussed as to the second cause of action. (Garcia Decl., Exh. 2 [Riggs Depo. 15:3-16:13].) Whether the stated reason was the actual reason is disputed.

Because none of the grounds Defendants advance disposes of the sixth cause of action, the Motion for Summary Adjudication is DENIED as to the sixth cause of action.

Independent Contractor Classification (Issues Nos. 6 and 8 through 11)

Defendants' sixth and eighth through eleventh issues rest substantially on the premise that Plaintiff was an independent contractor in 2019 and 2020 and therefore outside the Labor Code provisions she invokes.

In support, Defendants provide evidence of the contractual label, Plaintiff's formation of an LLC, and her control over her own schedule and location. (Angioni Decl., Exh. F; Exh. G; Exh. H; Exh. R [Logan Depo. 262:24-263:3].) Defendants assert Plaintiff was an independent contractor from 2019 forward but apply no classification standard in their moving papers, invoking Borello and the Labor Code section 2780 exemption for the first time on reply.

A label is not controlling. Under both *S.G. Borello & Sons, Inc. v. Department of Industrial Relations* (1989) 48 Cal.3d 341, 350, and *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, 916-917, the substance of the relationship governs.

Even assuming the burden shifted, in opposition, Plaintiff provides Mr. King's admission that her job responsibilities in 2018, when she was undisputedly an employee, and in 2019, when she was allegedly a contractor, were "pretty much the same." (Garcia Decl., Exh. 3 [King Depo. 193:6-9].) She provides the Freelance Rate Sheet requiring Mr. King's approval on all key roles including Director, Art Director, VFX Supervisor, Editor, and Director of Photography, and providing that studio pre-negotiated crew rates applied unless approved otherwise by Mr. King or Mr. Riggs. (Garcia Decl., Exh. 7; Exh. 3 [King Depo. 212:9-13].) She provides Mr. King's testimony that the default was to use a salaried employee before hiring a third party. (Garcia Decl., Exh. 3 [King Depo. 222:9-22].) She provides Mr. Riggs's testimony that it was possible he told Mr. King that workers were misclassified. (Garcia Decl., Exh. 2 [Riggs Depo. 147:5-9].) She provides the December 14, 2018 email conditioning continued work on a resignation letter and formation of an LLC. (Garcia Decl., Exh. 9.) She provides testimony that Mr. Riggs told her King Studio would not pay a higher commission to a W-2 employee because Mr. King did not want to pay more taxes, so she had to be paid through an LLC. (Garcia Decl., Exh. 10 [Logan Decl. ¶ 13].)

Defendants argue for the first time in Reply that Plaintiff falls within the exemption at Labor Code section 2780(a)(1)(J), which they contend mandates the Borello test. Points raised for the first time in a reply will ordinarily not be considered, because doing so deprives the opposing party of an opportunity to respond. (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The argument also does not withstand scrutiny. Section 2780(a)(1) applies to enumerated occupations "in connection with creating, marketing, promoting, or distributing sound recordings or musical compositions," and subdivision (a)(2)(A) expressly excludes film and television unit production crews working on audiovisual works. The section was added by Stats. 2020, ch. 38, § 2 (AB 2257), effective September 4, 2020, after the parties' relationship ended.

The Court need not decide which test governs. Triable issues remain.

Seventh Cause of Action: Breach of Implied Contract (Issue No. 7)

Employment having no specified term is presumed terminable at will. (Lab. Code § 2922.) That presumption may be overcome by evidence of an implied-in-fact agreement limiting the employer's termination rights, assessed under the totality of the circumstances and considering the employer's personnel policies or practices, the employee's longevity of service, actions or communications reflecting assurances of continued employment, and industry practice. (Foley v. Interactive Data Corp. (1988) 47 Cal.3d 654, 680-681; Guz, supra, 24 Cal.4th at pp. 336-337.) Longevity, raises, and promotions do not alone establish such a contract. (Guz, supra, 24 Cal.4th at pp. 341-342.) An express agreement and an implied agreement cannot coexist where each embraces the identical subject but requires a different result. (Tollefson, supra, 219 Cal.App.3d at pp. 854-855.)

The Complaint alleges King Studio promised by words and conduct that Plaintiff would be a Producer on its television or film projects and would not be discharged if she continued to perform well. (Complaint ¶ 127.)

Defendants move for summary adjudication of the seventh cause of action on the grounds that the parties' relationship was governed by an express fixed-term agreement terminable upon notice, and that no implied promise of permanent employment exists.

In support, Defendants provide evidence that the relationship was governed by an express written agreement between Logan Media Group, LLC and King Studio, that the agreement fixed an end date of December 31, 2019, that either party could terminate on ten days' notice, and that the agreement contained no for-cause limitation and no promise of continued engagement. (Angioni Decl., Exh. G; Exh. H.) They provide evidence that Plaintiff individually was not a party to that agreement. (Angioni Decl., Exh. G.) They provide evidence that Plaintiff's own freelance rate sheet reflected the December 31, 2019 end date. (Angioni Decl., Exh. H.)

Defendants have met their initial burden. The burden shifts to Plaintiff.

Plaintiff's Opposition is silent as to this cause of action. She offers no argument and no citation to evidence directed at it, and identifies no assurance, policy, practice, or course of conduct from which an implied promise of continued engagement could be found as to any period. Where the moving party has carried its burden, the opposing party must set forth specific facts showing a triable issue of material fact; a failure to respond leaves no such issue. (Code Civ. Proc., § 437c, subds. (b)(3), (p)(2).)

Plaintiff has not met her burden. Plaintiff's Opposition does not address this cause of action, offers no responsive evidence, and thereby fails to demonstrate a triable issue.

The Motion for Summary Adjudication is GRANTED as to the seventh cause of action.

Eighth Cause of Action: Failure to Pay Minimum Wage (Issue No. 8)

Labor Code sections 1194, 1194.2, and 1197 require that an employee receive at least the applicable minimum wage for each hour worked.

Defendants move for summary adjudication of the eighth cause of action on the grounds that Plaintiff was an independent contractor from 2019 forward, and that in any event she was paid well above minimum wage at all times.

In support, Defendants provide evidence that Plaintiff received a salary plus commission throughout her employment, that her commission rate rose from 2% to 2.5% to 3% to 5%, and that she earned \$119,369.69 in 2017 and \$256,874.50 in 2018. (Angioni Decl., Exh. T [Riggs Depo. 46:8-47:1, 48:7-49:1, 62:13-63:9]; Exh. D [2017 Employee Annual Review]; Exh. J [payroll records].) They provide evidence that King Studio paid approximately \$245,000 in 2019 and approximately \$270,000 in 2020. (Angioni Decl., Exh. I [2019 invoices]; Exh. K [2020 payment statements].)

Defendants have met their initial burden. The burden shifts to Plaintiff.

In opposition, Plaintiff does not dispute the amounts she was paid. She argues only that if she was an employee, and if her compensation was commission-only without a base salary, then a triable issue exists as to whether there were pay periods in which her effective hourly rate fell below minimum wage. She cites no evidence of hours worked, identifies no pay period, and offers no evidence that her compensation in any period fell below the applicable rate. Her argument is conditional and speculative. Speculation is not evidence and does not create a triable issue. (Aguilar, *supra*, 25 Cal.4th at pp. 850, 864.)

The classification question is not material to this issue. Even if Plaintiff was an employee throughout, she has produced no evidence that she was paid less than minimum wage for any hour worked.

Plaintiff has not met her burden.

The Motion for Summary Adjudication is GRANTED as to the eighth cause of action.

Ninth Cause of Action: Failure to Reimburse Business Expenses (Issue No. 9)

An employer must indemnify an employee for all necessary expenditures incurred in direct consequence of the discharge of her duties. (Lab. Code § 2802.) The section applies to employees, not independent contractors. (Arnold v. Mutual of Omaha Ins. Co. (2011) 202 Cal.App.4th 580, 586-590.) Any agreement by an employee to waive the benefits of that article is null and void. (Lab. Code § 2804.)

Defendants move for summary adjudication of the ninth cause of action on three grounds: that Plaintiff was a contractor during the relevant period, that the parties' agreements allocated the claimed expenses to her, and that she identifies no unreimbursed expense from her employment period.

Contractor Status and Contractual Allocation

In support of the first ground, Defendants provide the classification evidence identified above. (Angioni Decl., Exh. F; Exh. G; Exh. H; Exh. R [Logan Depo. 262:24-263:3].) That showing carries Defendants' initial burden, and the burden shifts to Plaintiff. Plaintiff meets it for the reasons set forth in the classification discussion above. A triable issue exists as to whether she was King Studio's employee during 2019 and 2020.

In support of the second ground, Defendants provide the 2019 Freelance Rates schedule stating that any fees payable to an agent or manager's assistant are the responsibility of the Freelancer, and the Independent Contractor Agreement providing that Plaintiff's company would not be reimbursed for expenses incurred in performing services. (Angioni Decl., Exh. H; Exh. G.) Plaintiff admits both facts as undisputed.

Defendants have not met their initial burden on this ground. The allocation is enforceable only if Plaintiff was not an employee. If she was, Labor Code section 2804 renders it void. Because the classification question is triable, these grounds

do not dispose of the claim.

Identification of Expenses

In support, Defendants provide Plaintiff's interrogatory responses and Mr. King's testimony. (Angioni Decl., Exh. U [Response to Special Interrogatory No. 69]; Exh. S [King Depo. 216:3 et seq.].) They provide evidence that during her employment Plaintiff submitted receipts and was reimbursed, and that as a contractor she had a company credit card and routinely submitted reimbursable expenses. (Angioni Decl., Exh. B [email of Feb. 15, 2016]; Exh. N [email of Apr. 17, 2020].)

Defendants have not met their initial burden on this ground. Their own cited evidence identifies a specific claimed expense. Plaintiff's interrogatory responses identify Ms. Katie Schwineck's compensation, and Mr. King testified that Ms. Schwineck represented she was employed by REPT. (Angioni Decl., Exh. U; Exh. S [King Depo. 216:3 et seq.].) The responses are not factually devoid. Whether that expenditure was a necessary expense incurred in direct consequence of Plaintiff's duties, if she was an employee, is a question of fact.

The burden does not shift, and the third ground does not dispose of the claim.

Because none of the grounds Defendants advance disposes of the ninth cause of action, the Motion for Summary Adjudication is DENIED as to the ninth cause of action.

Tenth Cause of Action: Failure to Provide Accurate, Itemized Wage Statements (Issue No. 10)

Labor Code section 226 applies to employees.

Defendants move for summary adjudication of the tenth cause of action on the sole ground that Plaintiff stopped receiving wage statements in January 2019 because she was no longer an employee and was not entitled to them. Plaintiff claims a violation "since at least January 2, 2019." (Complaint ¶ 146.)

In support, Defendants provide excerpts of the wage statements issued to Plaintiff during her employment, and the classification evidence identified above. (Angioni Decl., Exh. Q [wage statement excerpts]; Exh. G; Exh. H.)

Defendants have met their initial burden. The burden shifts to Plaintiff.

In opposition, Plaintiff provides the classification evidence set forth above. (Garcia Decl., Exh. 3 [King Depo. 193:6-9, 212:9-13, 222:9-22]; Exh. 7; Exh. 9; Exh. 2 [Riggs Depo. 147:5-9]; Exh. 10 [Logan Decl. ¶ 13].) This claim rises and falls with that question. Defendants concede Plaintiff received no wage statements after January 2019. Because a triable issue exists as to whether Plaintiff was an employee during that period, a triable issue exists as to her entitlement to wage statements.

Plaintiff has met her burden.

The Motion for Summary Adjudication is DENIED as to the tenth cause of action.

Eleventh Cause of Action: Waiting Time Penalties (Issue No. 11)

Labor Code sections 201 through 203 require prompt payment of all wages owing at the conclusion of employment. Wages include amounts calculated on a commission basis. (Lab. Code § 200(a).)

Defendants move for summary adjudication of the eleventh cause of action on three grounds: that it is derivative of the eighth cause of action, that Plaintiff was a contractor, and that her list of unpaid deals is demonstrably inaccurate.

Derivative Ground

Defendants have not met their initial burden on this ground. The claim is not derivative of the minimum wage claim. Plaintiff's theory rests on unpaid commissions, which are wages under Labor Code section 200(a).

Contractor Status

In support, Defendants provide the classification evidence identified above. (Angioni Decl., Exh. F; Exh. G; Exh. H; Exh. R [Logan Depo. 262:24-263:3].) Defendants have met their initial burden. The burden shifts, and Plaintiff has met it for the reasons set forth in the classification discussion.

Unpaid Deals

In support, Defendants provide evidence that King Studio paid Plaintiff for many of the deals she claims to have negotiated in 2020, that at least one deal was cancelled by the contracting party and refunded, and that at least one deal was declined by King Studio. (Angioni Decl., Exh. K [2020 payment statements]; Exh. M [2020 invoicing correspondence]; Exh. L [Riggs letter of Oct. 21, 2020].)

Defendants have not met their initial burden on this ground. Plaintiff's interrogatory responses assert she negotiated 31 brand deals in 2020 and is entitled to compensation for each. (Angioni Decl., Exh. U [Responses to Special Interrogatories Nos. 55 and 69].) Defendants' evidence does not account for all 31. A showing that some deals were paid, that one was cancelled, and that one was declined does not establish that no earned wages were owing at separation. A motion must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition. (Leyva, supra, 164 Cal.App.3d at p. 468-469.)

The Motion for Summary Adjudication is DENIED as to the eleventh cause of action.

Punitive Damages (Issue No. 12)

Punitive damages require clear and convincing evidence of oppression, fraud, or malice. (Civ. Code § 3294(a).) As to a corporate employer, the conduct must be committed, authorized, or ratified by an officer, director, or managing agent. (Civ. Code § 3294(b).) On summary adjudication, the Court considers whether a reasonable trier of fact could find by clear and convincing evidence that the standard is met. Whether conduct warrants punitive damages is ordinarily a question for the trier of fact. (American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2002) 96 Cal.App.4th 1017, 1049.)

Defendants move for summary adjudication of Plaintiff's request for punitive damages on the ground that she has no clear and convincing evidence of oppression, fraud, or malice.

In support, Defendants point to the absence of evidence and rely on the same record offered as to the underlying claims, namely that Plaintiff was promoted and repeatedly given raises, that her concerns were met with action, and that the relationship ended over a failed contract negotiation. (Angioni Decl., Exh. T [Riggs Depo. 46:8-47:1, 48:7-49:1, 62:13-63:9];

Exh. R [Logan Depo. 153:22-154:18]; Exh. J; Exh. O; Exh. P.)

Defendants have met their initial burden. The burden shifts to Plaintiff.

In opposition, Plaintiff provides testimony that Mr. King made repeated gender-based statements about her availability once she married and had children, and that he did not want a woman overseeing an all-male team. (Garcia Decl., Exh. 1 [Logan Depo. 172:10-173:20, 187:10-25]; Exh. 10 [Logan Decl. ¶¶ 17].) She provides the December 14, 2018 email conditioning continued work on a resignation letter she opposed and on forming an LLC. (Garcia Decl., Exh. 9; Exh. 10 [Logan Decl. ¶¶ 14-15].) She provides testimony that Mr. Riggs told her the arrangement was structured so Mr. King would not pay more taxes. (Garcia Decl., Exh. 10 [Logan Decl. ¶ 13].) She provides Mr. Riggs's testimony that it was possible he told Mr. King workers were misclassified. (Garcia Decl., Exh. 2 [Riggs Depo. 147:5-9].) She provides testimony that on February 6, 2020 Mr. King assured her that her position was safe and urged her to trust his integrity. (Garcia Decl., Exh. 10 [Logan Decl. ¶ 18].) She provides Mr. Riggs's testimony contradicting the stated reason for ending the relationship. (Garcia Decl., Exh. 2 [Riggs Depo. 15:3-16:13].)

Discrimination followed by concealment through false explanations may support punitive damages. (Cloud v. Casey (1999) 76 Cal.App.4th 895, 911-912.)

On this record, a reasonable trier of fact could find by clear and convincing evidence that Defendants acted with malice or oppression.

Plaintiff has met her burden. Plaintiff provides evidence that an officer of King Studio stated he would not place a woman over the male post team and then hired a man, and that Plaintiff was required to submit a resignation letter she believed to be false – evidence from which a trier of fact could find oppression or malice by clear and convincing proof.

The Motion for Summary Adjudication is DENIED as to the request for punitive damages.

Conclusion

The Motion to Seal is GRANTED.

The Motion for Summary Judgment is DENIED.

The Motion for Summary Adjudication is GRANTED as to the seventh and eighth causes of action, and DENIED as to the first, second, third, fourth, fifth, sixth, ninth, tenth, and eleventh causes of action and as to Plaintiff's request for punitive damages.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.